

TERMINATION AND RELEASE

This Termination and Release is given as of the 5th day of February, 2020, by Michael D. Dollaghan ("Dollaghan") and William W. Crowell ("Crowell") for the benefit of CEMEX, Inc. ("CEMEX").

1. On July 15, 2002, the County of Boulder, Colorado ("County"), granted a Covenant Running with the Land (the "Covenant"), recorded in the Boulder County real property records at Reception No. 2308595 on July 17, 2002, to and in favor of Michael D. Dollaghan and William W. Crowell.

2. The Covenant was made by the County when it acquired a future interest in the real property described in the attached Exhibit A and Exhibit B (the "Real Property"), which exhibits are incorporated herein by reference.

3. Subsequently, on the same July 15, 2002 date, the County conveyed its interest in the Real Property to CEMEX. CEMEX remains as the owner of the Real Property.

4. CEMEX, Dollaghan and Crowell have entered into an agreement providing, among other things, for the termination and release of the Covenant (the "Settlement Agreement").

5. In consideration of the Settlement Agreement between CEMEX, Dollaghan and Crowell, and for other good and valuable consideration, Dollaghan and Crowell hereby covenant and agree as follows:

A. Dollaghan and Crowell each individually represent and warrant that they have not assigned, conveyed or otherwise transferred any of their interests in or rights under the Covenant to any other person or entity.

B. Dollaghan and Crowell hereby terminate and extinguish the Covenant to the fullest extent possible.

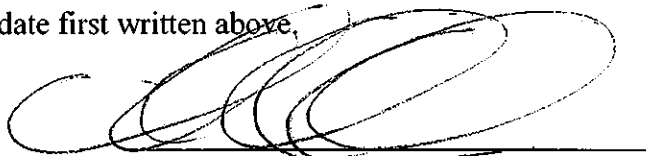
C. Dollaghan and Crowell hereby fully and forever release the County and CEMEX, its subsidiaries, affiliates, divisions, partners, predecessors, successors, agents, officers, directors, shareholders, investors, insurers, and attorneys, from any and all claims, cross-claims, third-party claims, demands, actions, causes of action, suits, obligations, liabilities, controversies, agreements, promises, costs, and damages, of every kind and nature whatsoever, in law or in equity, whether known or unknown, whether asserted or unasserted, arising out of the Covenant.

D. Dollaghan and Crowell hereby covenant and agree not to allege, institute, enforce, prosecute, or in any way aid in the institution, prosecution or enforcement of any claims, demands, actions, causes of action, liabilities, costs, damages, or other matters described in the Covenant, in a court of law or equity, before any agency, subdivision, or officer of any federal, state, or local government, or before any other forum or person of any nature whatsoever.

E. As beneficiaries of the Covenant, Dollaghan and Crowell hereby fully and forever release the Covenant and assign their respective interests in and to the Covenant to CEMEX.

6. This Termination and Release shall be binding upon Dollaghan and Crowell and their personal and legal representatives, agents, investors, partners, predecessors, successors, heirs, assigns, all persons or entities claiming under them, and any persons or entities acting or purporting to act on their behalf.

Executed and Delivered effective on the date first written above.



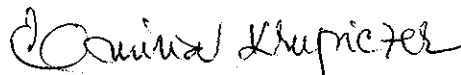
MICHAEL D. DOLLAGHAN

STATE OF ARIZONA)
) ss.
COUNTY OF MARICOPA)

The foregoing instrument was acknowledged before me this 24 day of January, 2020, by Michael D. Dollaghan, an individual.

Witness my hand and official seal.

Notary Public



My commission expires: February 11, 2023

{Additional Signature on Next Page}





WILLIAM W. CROWELL

Elizabeth Temple, Attorney-in-fact for William W. Crowell
Eyre
as evidenced by attached power
of attorney (see Exhibit BB)

STATE OF _____)
) ss.
COUNTY OF _____)

The foregoing instrument was acknowledged before me this ____ day of
_____, 2020, by William W. Crowell, an individual.

Witness my hand and official seal.

Notary Public
My commission expires:

See Attached Notarial Certificate:
Acknowledgment or Jural

See Attached Notarial Certificate:
Acknowledgment or Jural

ACKNOWLEDGMENT

A notary public or other officer completing this certificate verifies only the identity of the individual who signed the document to which this certificate is attached, and not the truthfulness, accuracy, or validity of that document.

State of California
County of Los Angeles)

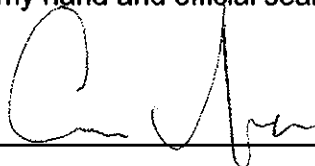
On 01/27/2020 before me, Amador Solis, Notary Public
(insert name and title of the officer)

personally appeared Elizabeth Eyre Temple, Attorney in Fact for William W. Crowell,
who proved to me on the basis of satisfactory evidence to be the person(s) whose name(s) is/are
subscribed to the within instrument and acknowledged to me that he/she/they executed the same in
his/her/their authorized capacity(ies), and that by his/her/their signature(s) on the instrument the
person(s), or the entity upon behalf of which the person(s) acted, executed the instrument.

I certify under PENALTY OF PERJURY under the laws of the State of California that the foregoing
paragraph is true and correct.

WITNESS my hand and official seal.

Signature



(Seal)

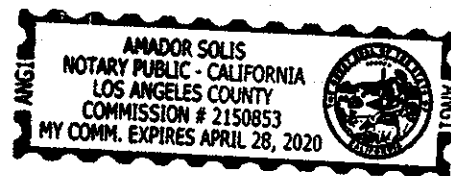


EXHIBIT A

The following real property located in Boulder County, Colorado:

Parcel A

A tract of land located in Sections 9, 16 and 21, all in T3N, R70W of the 6th P.M., described as follows:

Commencing at the S $\frac{1}{4}$ corner of said Section 9, from which the Southeast corner of said Section 9 bears S87°27'25"E, 2644.89 feet, thence S87°27'25"E, 599.46 feet along the South line of the SE $\frac{1}{4}$ of said Section 9 to the True Point of Beginning;

Thence N07°49'07"W, 1538.20 feet;

Thence N00°44'32"E, 1903.12 feet to the Southeasterly line of Tract "B" conveyed to the United States of America as described in Warranty Deed recorded in Book 903 at Page 221 of the records of Boulder County, Colorado;

Thence S40°01'00"W, 224.48 feet along the Southeasterly line of said Tract "B" to a point of curve to the right;

Thence Southwesterly 158.24 feet along the Southeasterly line of said Tract "B" and along the arc of said curve to a point tangent, said arc having a radius of 643.00 feet, a central angle of 14°06'00" and being subtended by a chord that bears S47°04'00"W, 157.84 feet;

Thence S54°07'00"W, 799.62 feet along the Southeasterly line of said Tract "B" to the East-West centerline of said Section 9;

Thence N88°00'00"W, 2146.94 feet along the East-West centerline of said Section 9 to the W $\frac{1}{4}$ corner of said Section 9;

Thence S00°24'30"W, 2618.21 feet along the West line of the SW $\frac{1}{4}$ of said Section 9 to the Southwest corner of said Section 9;

Thence S00°27'54"W, 2773.47 feet along the West line of the NW $\frac{1}{4}$ of said Section 16 to the W $\frac{1}{4}$ corner of said Section 16;

Thence S00°28'48"W, 2770.15 feet along the West line of the SW $\frac{1}{4}$ of said Section 16 to the Southwest corner of said Section 16;

Thence S00°26'16"W, 1316.49 feet along the West line of the NW $\frac{1}{4}$ of said Section 21 to the Southwest corner of the NW $\frac{1}{4}$ of the NW $\frac{1}{4}$ of said Section 21;

Thence S89°49'48"E, 1325.03 feet along the South line of the NW $\frac{1}{4}$ of the NW $\frac{1}{4}$ of said Section 21 to the Southeast corner thereof;

Thence N00°27'00"E, 897.37 feet along the East line of the NW $\frac{1}{4}$ of the NW $\frac{1}{4}$ of said Section 21 to the approximate Easterly bank of the Supply Ditch and to the Westerly line of that tract of land conveyed to Matt Ruskie and Fannie Ruskie as described in Warranty Deed recorded in Book 584 at Page 231 of the records of Boulder County, Colorado;

Thence N41°11'48"W, 104.41 feet along the approximate Easterly bank of said Supply Ditch and along the Westerly line of that tract of land as described in said Book 584 at Page 231;

Thence N17°17'58"W, 243.37 feet along the approximate Easterly bank of said Supply Ditch and along the Westerly line of that tract of land as described in said Book 584 at Page 231;

Thence N03°09'35"E, 111.70 feet along the approximate Easterly bank of said Supply Ditch and along the Westerly line of that tract of land as described in said Book 584 at Page 231 to the South line of the SW ¼ of said Section 16;

Thence N89°58'20"W, 137.03 feet along the South line of the SW ¼ of said Section 16 to the Southwest corner of that tract of land conveyed to Matt and Fanny Ruski as described in Warranty Deed recorded in Book 601 at Page 45 of the records of Boulder County, Colorado and as described in Quite Claim Deed recorded in Book 603 at Page 26 of the records of Boulder County, Colorado;

Thence N00°01'40"E, 1320.00 feet along the West line of that tract of land as described in said Book 601 at Page 45 and in said Book 603 at Page 26 to the Northwest corner thereof;

Thence S89°58'20"E, 996.00 feet along the North line of that tract of land as described in said Book 601 at Page 45 and in said Book 603 at Page 26 to the Northeast corner thereof;

Thence S00°01'40"W, 1194.76 feet along the East line of that tract of land as described in said Book 601 at Page 45 and in said Book 603 at Page 26 to the approximate Southerly bank of said Supply Ditch and along the Northerly line of that tract of land as described in said Book 584 at Page 231;

Thence S34°07'46"E, 151.34 feet along the approximate Southerly bank of said Supply Ditch and along the Northerly line of that tract of land as described in said Book 584 at Page 231 to the South line of the SW ¼ of said Section 16;

Thence S89°58'20"E, 25.37 feet along the South line of the SW ¼ of said Section 16 to the West line of the East 30 acres of the NW ¼ of said Section 21;

Thence S00°27'46"W, 2643.55 feet along the West line of the East 30 acres of the NW ¼ of Said Section 21 to the South line of the NW ¼ of Section 21;

Thence S89°40'32"E, 279.60 feet along the South line of the NW ¼ of said Section 21 to the Southwest corner of that tract of land conveyed to Wm. L. Persons as described in Warranty Deed recorded in Book 70 at Page 162 of the records of Boulder County, Colorado;

Thence N27°54'28"E, 465.40 feet along the Northwesterly line of that tract of land as described in said Book 70 at Page 162 to the North-South centerline of said Section 21;

Thence N00°27'46"E, 645.55 feet along the North-South centerline of said Section 21 to the South line of the North 265.00 feet of the NW ¼ of the SW ¼ of the NE ¼ of said Section 21;

Thence S89°46'54"E, 330.00 feet along the South line of the North 265.00 feet of the NW ¼ of the SW ¼ of the NE ¼ of said Section 21 to the East line of the West 330.00 feet to the NW ¼ of the SW ¼ of the NE ¼ of said Section 21.;

Thence N00°27'46"E, 265.00 feet along the East line of the West 330.00 feet of the NW ¼ of the SW ¼ of the NE ¼ of said Section 21 to the South line of the NW ¼ of the NE ¼ of said Section 21;

Thence S89°46'52"E, 328.67 feet along the South line of the NW ¼ of the NE ¼ of said Section 21 to the Southeast corner of the W ½ of the NW ¼ of the NE ¼ of said Section 21;

Thence N00°28'52"E, 1324.28 feet along the East line of the W ½ of the NW ¼ of the NE ¼ of said Section 21 to the Northeast corner thereof;

Thence N00°32'09"E, 2699.69 feet along the East line of the W ½ of the W ½ of the SE ¼ of the said Section 16 to the Northeast corner thereof;

Thence N0°29'06"E, 2700.60 feet along the East line of the W ½ of the W ½ of the NE ¼ of said Section 16 to the Northeast corner thereof;

Thence N87°27'25"W, 61.76 feet along the South line of the SE ¼ of said Section 9 to the True Point of Beginning;

EXCEPTIONS:

Tract "B", Tract "C", Tract "F", Tract "G", Tract "I" and Tract "S" conveyed to the United States of America as described in Warranty Deed record in Book 903 at Pag 221 of the records of Boulder County, Colorado.

Tract "F" and Tract "G" conveyed to the United States of America as described in Warranty Deed recorded in Book 905 at Page 250 of the records of Boulder County, Colorado.

Road right-of-way for Colorado State Highway No. 66.

Right-of-way for the Burlington and Northern Railroad.

All that portion of the Highland Ditch located in the W ½ of the NW ¼ of the NE ¼ of said Section 21.

Parcel B:

A tract of land located in the E ½ of the Section 9, the SW ¼ of Section 10, Section 15, the E ½ of Section 16, the NE ¼ of Section 21 and in the NW ¼ of the NE ¼ of Section 22, all in T3N, R70W, of the 6th P.M., described as follows:

Commencing at the S ¼ corner of said Section 9, from which the Southeast corner of the said Section 9 bears S87°27'25"E, 2644.89 feet; thence S87°27'25"E, 599.46 feet along the South line of the SE ¼ of said Section 9 to the True Point of Beginning, from which a point hereinafter referred to as Point "A" bears N07°49'07"W, 1538.20 feet;

Thence continuing S87°27'25"E, 61.76 feet along the South line of the SE ¼ of said Section 9 to the Northeast corner of the W 1/2 of the W ½ of the NE ¼ of said Section 16;

Thence S00°29'06"W, 2700.60 feet along the East line of the W ½ of the W ½ of the NE ¼ of said Section 16 to the Southeast corner thereof;

Thence S00°32'09"W, 2699.69 feet along the East line of the W ½ of the W ½ of the SE ¼ of said Section 16 to the Southeast corner thereof;

Thence S00°28'52"W, 1324.28 feet along the East line of the W ½ of the NW ¼ of the NE ¼ of said Section 21 to the Southeast corner thereof;

Thence S89°46'54"E, 658.67 feet along the South line of the NW ¼ of the NE ¼ of said Section 21 to the Southeast corner thereof;

Thence N00°29'57"E, 1325.50 feet along the East line of the NW ¼ of the NE ¼ of said Section 21 to the Northeast corner thereof;

Thence N00°34'45"E, 1343.19 feet along the West line of the SE ¼ of the SE ¼ of said Section 16 to the Northwest corner thereof;

Thence S89°18'43"E, 1320.20 feet along the North line of the SE ¼ of the SE ¼ of said Section 16 to the Northeast corner thereof;

Thence S89°45'38"E, 1321.95 feet along the North line of the SW ¼ of the SW ¼ of said Section 15 to the Northeast corner thereof;

Thence S00°31'39"W, 683.81 feet along the East line of the SW ¼ of the SW ¼ of said Section 15 to the approximate Northerly bank of the Supply Ditch;

The following courses and distances are along the approximate Northerly bank of said Supply Ditch:

Thence N74°04'04"E, 86.38 feet;

Thence N61°42'40"E, 199.17 feet;

Thence N21°00'22"E, 276.56 feet;

Thence N45°56'00"E, 75.97 feet;

Thence N75°25'05"E, 176.92 feet;

Thence S27°00'29"E, 306.77 feet;

Thence S64°35'35"E, 357.74 feet;

Thence S79°34'12"E, 142.33 feet;

Thence S63°57'18"E, 182.39 feet;

Thence S50°18'58"E, 112.20 feet;

Thence S71°54'56"E, 168.49 feet;

Thence S55°53'34"E, 189.88 feet;

Thence S75°12'21"E, 184.87 feet;

Thence S66°08'01"E, 196.80 feet;

Thence S57°15'11"E, 312.16 feet;

Thence S37°39'43"E, 194.52 feet;

Thence S39°28'40"E, 236.03 feet to the East line of the NW ¼ of the NE ¼ of said Section 22;

Thence leaving the approximate Northerly bank of the said Supply Ditch, N00°23'09"E, 274.18 feet along the East line of the NW ¼ of the NE ¼ of said Section 22 to the Northeast corner thereof;

Thence S89°54'18"E, 532.30 feet along the South line of the SE ¼ of said Section 15 to a point from which the Southeast corner of said Section 15 bears S89°54'18"E, 793.42 feet;

Thence N05°48'06"W, 2055.16 feet;

Thence N61°53'26"W, 406.88 feet;

Thence N14°23'36"W, 431.01 feet;

Thence N22°20'47"W, 1733.69 feet;

Thence N33°00'42"W, 1264.40 feet to the North line of the NW ¼ of said Section 15, from which the N ¼ corner of said Section 15 bears S89°51'50"E, 199.23 feet;

Thence N11°26'41"W, 2699.53 feet to the East-West centerline of said Section 10;

Thence N89°10'22"W, 1879.89 feet along the East-West centerline of said Section 10 the W ¼ corner of said Section 10;

Thence N00°16'51"E, 2146.77 feet along the East line of the NE ¼ of said Section 9 to the Southerly line of Tract "A" conveyed to the United States of America as described in Warranty Deed recorded in Book 905 at Page 250 of the records of Boulder County, Colorado;

Thence N88°56'02"W, 349.96 feet along the Southerly line of said Tract "A" to a point of curve to the left;

Thence Westerly, 106.38 feet along the Southerly line of said Tract "A" and along the arc of said curve to a point tangent, said arc having a radius of 1325.00 feet, a central angle of 4°36'00" and being subtended by a chord that bears S88°45'58"W, 106.35 feet;

Thence S86°27'58"W, 332.10 feet along the Southerly line of said Tract "A" to a point of curve to the right;

Thence Westerly 134.86 feet along the Southerly line of said Tract "A" and along the arc of said curve to a point tangent, said arc having a radius of 643.00 feet, a central angle of 12°01'00" and being subtended by a chord that bears N87°31'32"W, 134.61 feet;

Thence N81°31'02"W, 913.54 feet along the Southerly line of said Tract "A" and along the Southerly line of Tract "B" conveyed to the United States of America as described in Warranty Deed recorded on Film 834 at Reception No. 083286 of the records of Boulder County, Colorado, to the Easterly line of Tract "D" as described in said Book 905 at Page 250;

Thence S60°20'22"W, 196.38 feet along the Easterly line of said Tract "D" to the West line of the E ½ of the W ½ of the NE ¼ of said Section 9;

Thence S00°09'52"W, 246.96 feet along the West line of the E ½ of the W ½ of the NE ¼ of said Section 9 to the Northeasterly line of Tract "C" as described in said Book 905 at Page 250;

Thence S38°43'00"E, 73.00 feet along the Northeasterly line of said Tract "C" to a point of curve to the right;

Thence Southerly, 302.62 feet along the Easterly line of said Tract "C" and along the arc of said curve to a point tangent, said arc having a radius of 308.70 feet, a central angle of 56°10'00" and being subtended by a chord that bears S10°38'00"E, 290.64 feet;

Thence S17°27'00"W, 440.20 feet along the Easterly line of said Tract "C" and along the Easterly line of Tract "B" conveyed to the United States of America as described in Book 903 at Page 221 of the records of Boulder County, Colorado, to a point of curve to the right;

Thence Southerly, 140.41 feet along the Southeasterly line of said Tract "B" and along the arc of said curve to a point tangent, said arc having a radius of 356.50 feet, a central angle of 22°34'00" and being subtended by a chord that bears S28°44'00"W, 139.51 feet;

Thence S40°01'00"W, 250.22 feet along the Southeasterly line of said Tract "B" to a point from which said Point "A" bears S00°44'32"W;

Thence S00°44'32"W, 1903.12 feet to said Point "A";

Thence S07°49'07"E, 1538.20 feet to the True Point of Beginning.

TOGETHER WITH right-of-way for private driveway over and across the East 25.00 feet of the W ½ of the NE ¼ of said Section 22;

TOGETHER WITH an easement for purposes of ingress and egress: Access from County Road Number 47, described as follows:

60 foot right-of-way and utility easement being the South 60 feet of the Easterly 2059.2 feet of the Southeast quarter of Section 4, Township 3 North, Range 70 West of the 6th P.M. and the Easterly 60 feet of the West one-half of the West one-half of the Northeast quarter of Section 9, Township 3 North, Range 70 West of the 6th P.M. to the St. Vrain Supply Canal Right-of-Way Easement as described in Decd recorded April 1, 1952 in Book 903, Page 221; thence along the canal right-of-way easement to the Southwest quarter of Section 9, Township 3 North, Range 70 West of the 6th P.M.,
County of Boulder,
State of Colorado.

SUBJECT to a right-of-way for Boulder County Road No. 47 (North 53rd Street, Vestal Road and North 57th Street).

COUNTY OF BOULDER
STATE OF COLORADO

Not including, however, and excepting from the two foregoing parcels:

1. Any portion of the two foregoing parcels lying south of Highway 66, including but not limited to the real property hereinafter described under the heading Development Parcel South.
2. Any portion of the two foregoing parcels included in the real property hereinafter described under the heading Development Parcel North.
3. Any portion of the two foregoing parcels included in the real property hereinafter described under the heading Boulder County South Parcel A.

EXCLUDING THE FOLLOWING PARCELS known as the Development Parcel North; the Development Parcel South, and the Boulder County South Parcel A.

DEVELOPMENT PARCEL NORTH

A tract of land located in the S1/2 of Section 16 and in the N1/2 of Section 21, all in T3N, R70W of the 6th P.M., Boulder County, Colorado, described as follows:

Commencing at the S ¼ Corner of Section 9, T3N, R70W of the 6th P.M., from which the Southeast Corner of said Section 9 bears S87°27'25"E, 2644.89 feet, thence N87°28'55"W, 86.80 feet along the South line of the SW ¼ of said Section 9; thence S00°00'00"W, 3490.76 feet to the TRUE POINT OF BEGINNING;

Thence N89°58'20"W, 563.41 feet to the East line extended Northerly of that tract of land as described in Warranty Deed recorded in Book 601 at Page 45 of the records of Boulder County, Colorado and as described in Quit Claim Deed recorded in Book 603 at Page 26 of the records of Boulder County, Colorado;

Thence S00°01'40"W, 621.14 feet along the East line extended Northerly of that tract of land as described in said Book 601 at Page 45 and in said Book 603 at Page 26 to the Northeast Corner thereof;

Thence S00°01'40"W, 1194.78 feet along the East line of that tract of land as described in said Book 601 at Page 45 and in said Book 603 at Page 26 to the approximate Southerly bank of the Supply Ditch and the Northerly line of that tract of land as described in Warranty Deed recorded in Book 584 at Page 231 of the records of Boulder County, Colorado;

Thence S34°07'46"E, 151.34 feet along the approximate Southerly bank of said Supply Ditch and along the Northerly line of that tract of land as described in said Book 584 at Page 231 to the South line of the SW ¼ of said Section 16;

Thence S89°58'20"E, 25.37 feet along the South line of the SW ¼ of said Section 16 to the West line of the East 30 acres of the NW ¼ of said Section 21;

Thence S00°27'46"W, 2102.34 feet along the West line of the East 30 Acres of the NW ¼ of said Section 21 to the Northeasterly right-of-way line of Colorado State Highway No. 66;

Thence S63°32'37"E, 497.42 feet along the Northeasterly right-of-way line of said Colorado State Highway No. 66 to the Northwesterly line of that tract of land as described in Warranty Deed recorded in Book 70 at Page 162 of the records of Boulder County, Colorado;

Thence N27°54'28"E, 101.97 feet along the Northwesterly line of that tract of land as described in said Book 70 at Page 162 to the North-South Centerline of said Section 21;

Thence N00°27'46"E, 645.55 feet along the North-South Centerline of said Section 21 to the South line of the North 265.00 feet of the NW ¼ of the SW ¼ of the NE ¼ of said Section 21;

Thence S89°46'54"E, 330.00 feet along the South line of the North 265.00 feet of the NW ¼ of the SW ¼ of the NE ¼ of said Section 21 to the South line of the NW ¼ of the NE ¼ of said Section 21;

Thence N00°27'46"E, 265.00 feet along the East line of the West 330.00 feet of the NW ¼ of the SW ¼ of the NE ¼ of said Section 21 to the South line of the NW ¼ of the NE ¼ of said Section 21;

Thence S89°46'52"E, 328.67 feet along the South line of the NW ¼ of the NE ¼ of said Section 21 to the Southeast Corner of the W ½ of the NW ¼ of the NE ¼ of said Section 21;

Thence S89°46'54"E, 658.67 feet along the South line of the NW ¼ of the NE ¼ of said Section 21 to the Southeast Corner thereof;

Thence N00°29'57"E, 1314.38 feet along the East line of the NW ¼ of the NE ¼ of said Section 21 to the South line of Boulder County Road No. 47 as described in Exhibit A in Special Warranty Deed recorded on Film 2126 as Reception No. 1607221 of the records of Boulder County, Colorado;

Thence N89°37'04"W, 45.93 feet along the Southerly line of said Boulder County Road No. 47 to the Southwest Corner thereof;

Thence Northeasterly, 160.80 feet along the Westerly line of said Boulder County Road No. 47 and along the arc of a curve concave to the Southeast to the West line of the SE ¼ of the SE ¼ of said Section 21, said arc having a radius of 815.00 feet, a central angle of 11°18'16" and being subtended by a chord that bears N17°11'48"E, 160.54 feet;

Thence N00°34'45"E, 1200.64 feet along the West line of the SE ¼ of the SE ¼ of said Section 16 to the Northwest Corner thereof;

Thence N00°34'45"E, 600.00 feet along the West line extended Northerly of the SE ¼ of the SE ¼ of said Section 16 to a point from which the True Point of Beginning bears N89°58'20"W;

Thence N89°58'20"W, 1377.93 feet to the TRUE POINT OF BEGINNING.

Subject to a right-of-way for Boulder County Road No. 47 (North 53rd Street).

EXCEPTIONS

All that portion of the Highland Ditch located in the W ½ of the NW ¼ of the NE ¼ of said Section 21.

FURTHER EXCLUDING

DEVELOPMENT PARCEL SOUTH (PLANT ENTRANCE)

A tract of land located in the NW ¼ of Section 21, T3N, R70W of the 6th P.M., Boulder County, Colorado, described as follows:

Commencing at the N ¼ Corner of Section 16, T3N, R70W of the 6th P.M., from which the Northeast Corner of said Section 16 bears S87°27'25"E, 2644.89 feet, thence S00°29'31"W, 5428.32 feet along the North-South Centerline of said Section 16 to the S ¼ Corner of said Section 16; thence S00°27'46"W, 2646.11 feet along the North-South Centerline of said Section 21 to the Center of said Section 21; thence N89°40'32"W, 494.10 feet along the South line of the NW ¼ of said Section 21 to the West line of the East 30 acres of the NW ¼ of said Section 21 and the TRUE POINT OF BEGINNING;

Thence S89°40'32"E, 279.60 feet along the South line of the NW ¼ of said Section 21 to the Southwest Corner of that tract of land as described in Warranty Deed recorded in Book 70 at Page 162 of the records of Boulder County, Colorado;

Thence N27°54'28"E, 208.38 feet along the Northwesterly line of that tract of land as described in said Book 70 at Page 162 to the Southwesterly right-of-way line of Colorado State Highway No. 66;

Thence N63°32'37"W, 417.92 feet along the Southwesterly right-of-way line of said Colorado State Highway No. 66 to the West line of the East 30 acres of the NW ¼ of said Section 21;

Thence S00°27'46"W, 368.76 feet along the West line of the East 30 acres of the NW ¼ of said Section 21 to the TRUE POINT OF BEGINNING.

EXCEPTIONS

Right-of-way for the Burlington and Northern Railroad.

FURTHER EXCLUDING

BOULDER COUNTY SOUTH PARCEL A (ANNEXATION ARM)

A tract of land located in the SW ¼ of Section 16 and in the NW ¼ of Section 21, all in T3N, R70W of the 6th P.M., Boulder County, Colorado, described as follows:

Commencing at the N1/4 Corner of said Section 16, from which the Northeast Corner of said Section 16 bears S87°27'25"E, 2644.89 feet, thence N97°28'55"W, 86.80 feet along the North line of the NW ¼ of said Section 16; thence S00°00'00"W, 3490.76 feet; thence N89°58'20"W, 563.41 feet to the East line extended Northerly of that tract of land as described in Warranty Deed recorded in Book 601 at Page 45 of the records of Boulder County, Colorado, and as described in Quit Claim Deed recorded in Book 603 at Page 26 of the records of Boulder County, Colorado, and the TRUE POINT OF BEGINNING;

Thence N89°58'20"W, 2030.68 feet to the West line of the SW ¼ of said Section 16;

Thence S00°28'48"W, 1941.21 feet along the West line of the SW ¼ of said Section 16 to the Southwest Corner of said Section 16;

Thence S00°26'16"W, 216.48 feet along the West line of the NW ¼ of said Section 21;

Thence S89°49'48"E, 399.85 feet;

Thence N00°28'48"E, 1758.67 feet;

Thence S89°58'20"E, 1633.82 feet to the East line extended Northerly of that tract of land as described in said Book 601 at Page 45 and in said Book 603 at Page 26;

Thence N00°01'40"E, 400.00 feet along the East line extended Northerly of that tract of land as described in said Book 601 at Page 45 and in said Book 603 at Page 26 to the TRUE POINT OF BEGINNING.

Legal Descriptions Prepared By:
William K. Wight, PLS #23529
Drexel, Barrell & Co.
4840 Pearl East Circle, Suite 114
Boulder, CO 80301-2475
(303) 442-4338

EXHIBIT B

OPTION PROPERTY

DEVELOPMENT PARCEL NORTH

A tract of land located in the S $\frac{1}{2}$ of Section 16 and in the N $\frac{1}{2}$ of Section 21, all in T3N, R70W of the 6th P.M., Boulder County, Colorado, described as follows:

Commencing at the S $\frac{1}{4}$ Corner of Section 9, T3N, R70W of the 6th P.M., from which the Southeast Corner of said Section 9 bears S87°27'25"E, 2644.89 feet, thence N87°28'55"W, 86.80 feet along the South line of the SW $\frac{1}{4}$ of said Section 9; thence S00°00'00"W, 3490.76 feet to the TRUE POINT OF BEGINNING;

Thence N89°58'20"W, 563.41 feet to the East line extended Northerly of that tract of land as described in Warranty Deed recorded in Book 601 at Page 45 of the records of Boulder county, Colorado and as described in Quit Claim Deed recorded in Book 603 at Page 26 of the records of Boulder County, Colorado;

Thence S00°01'40"W, 621.14 feet along the East line extended Northerly of that tract of land as described in said Book 601 at Page 45 and in said Book 603 at Page 26 to the Northeast Corner thereof;

Thence S00°01'40"W, 1194.78 feet along the East line of that tract of land as described in said Book 601 at Page 45 and in said Book 603 at Page 26 to the approximate Southerly bank of the Supply Ditch and the Northerly line of that tract of land as described in Warranty Deed recorded in Book 584 at Page 231 of the records of Boulder County, Colorado;

Thence S34°07'46"E, 151.34 feet along the approximate Southerly bank of said Supply Ditch and along the Northerly line of that tract of land as described in said Book 584 at Page 231 to the South line of the SW $\frac{1}{4}$ of said Section 16;

Thence S89°58'20"E, 25.37 feet along the South line of the SW $\frac{1}{4}$ of said Section 16 to the West line of the East 30 acres of the NW $\frac{1}{4}$ of said Section 21;

Thence S00°27'46"W, 2102.34 feet along the West line of the East 30 acres of the NW $\frac{1}{4}$ of said Section 21 to the Northeasterly right-of-way line of Colorado State Highway No. 66;

Thence S63°32'37"E, 497.42 feet along the Northeasterly right-of-way line of said Colorado State Highway No. 66 to the Northwesterly line of that tract of land as described in Warranty Deed recorded in Book 70 at Page 162 of the records of Boulder County, Colorado;

Thence N27°54'28"E, 101.97 feet along the Northwesterly line of that tract of land as described in said Book 70 at Page 162 to the North-South Centerline of said Section 21;

Thence N00°27'46"E, 645.55 feet along the North-South Centerline of said Section 21 to the South line of the North 265.00 feet of the NW $\frac{1}{4}$ of the SW $\frac{1}{4}$ of the NE $\frac{1}{4}$ of said Section 21;

Thence S89°46'54"E, 330.00 feet along the South line of the North 265.00 feet of the NW $\frac{1}{4}$ of the SW $\frac{1}{4}$ of the NE $\frac{1}{4}$ of said Section 21 to the East line of the West 330.00 feet of the NW $\frac{1}{4}$ of the SW $\frac{1}{4}$ of the NE $\frac{1}{4}$ of said Section 21;

Thence N00°27'46"E, 265.00 feet along the East line of the West 330.00 feet of the NW $\frac{1}{4}$ of the SW $\frac{1}{4}$ of the NE $\frac{1}{4}$ of said Section 21 to the South line of the NW $\frac{1}{4}$ of the NE $\frac{1}{4}$ of said Section 21;

Thence S89°46'52"E, 328.67 feet along the South line of the NW ¼ of the NE ¼ of said Section 21 to the Southeast Corner of the W ½ of the NW ¼ of the NE ¼ of said Section 21;

Thence S89°46'54"E, 658.67 feet along the South line of the NW ¼ of the NE ¼ of said Section 21 to the Southeast Corner thereof;

Thence N00°29'57"E, 1314.38 feet along the East line of the NW ¼ of the NE ¼ of said Section 21 to the South line of Boulder County Road No. 47 as described in Exhibit A in Special Warranty Deed recorded on Film 2126 as Reception No. 1607221 of the records of Boulder County, Colorado;

Thence N89°37'04"W, 45.93 feet along the Southerly line of said Boulder County Road No. 47 to the Southwest Corner thereof;

Thence Northeasterly, 160.80 feet along the Westerly line said Boulder County Road No. 47 and along the arc of a curve concave to the Southeast to the West line of the SE ¼ of the SE ¼ of said Section 21, said arc having a radius of 815.00 feet, a central angle of 11°18'16" and being subtended by a chord that bears N17°11'48"E, 160.54 feet;

Thence N00°34'45"E, 1200.64 feet along the West line of the SE ¼ of the SE ¼ of said Section 16 to the Northwest Corner thereof;

Thence N00°34'45"E, 600.00 feet along the West line extended Northerly of the SE ¼ of the SE ¼ of said Section 16 to a point from which the True Point of Beginning bears N89°58'20"W;

Thence N89°58'20"W, 1377.93 feet to the TRUE POINT OF BEGINNING.

Subject to a right-of-way for Boulder County Road No. 47 (North 53rd Street).

EXCEPTIONS

All that portion of the Highland Ditch located in the W ½ of the NW ¼ of the NE ¼ of said Section 21.

Legal Description Prepared By:
William K. Wight, PLS #23529
Drexel, Barrell & Co.
4840 Pearl East Circle, Suite 114
Boulder, CO 80301-2475
(303) 442-4338

EXHIBIT BB

{SEE ATTACHED POWER OF ATTORNEY}

CERTIFICATION OF POWER OF ATTORNEY

Durable Power of Attorney for Financial Management Given by William W. Crowell

I, John L. McDonnell, Jr., hereby certify and declare under penalty of perjury as follows:

1. Authority for Certification

This Certification is made pursuant to the provisions of California Probate Code Section 4307, which reads as follows:

“Certified copies of power of attorney

“(a) A copy of a power of attorney certified under this section has the same force and effect as the original power of attorney.

“(b) A copy of a power of attorney may be certified by any of the following:

“(1) An attorney authorized to practice law in this state.

“(2) A notary public in this state.

“(3) An official of a state or of a political subdivision who is authorized to make certifications.

“(c) The certification shall state that the certifying person has examined the original power of attorney and the copy and that the copy is a true and correct copy of the original power of attorney.

“(d) Nothing in this section is intended to create an implication that a third person may be liable for acting in good faith in reliance on a copy of a power of attorney that has not been certified under this section.”

2. Status of Declarant

I am an attorney authorized to practice in the State of California.

3. Creation of Power of Attorney

On February 11, 2016, William W. Crowell created a Durable Power of Attorney for Financial Management Given by William W. Crowell (“the Power of Attorney”), a true copy of which is attached to and made a part of this Certification by this reference.

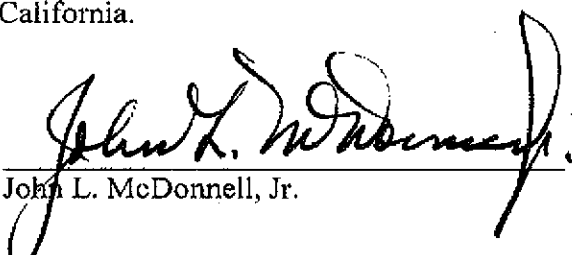
*Certification of Power of Attorney of
William W. Crowell
Page 2*

4. Certification

I have examined the original Power of Attorney and the copy attached to this Certification. I hereby certify that the copy attached to this Certification is a true and correct copy of the original Power of Attorney.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on December 20, 2018, at Orinda, California.



John L. McDonnell, Jr.

*Certification of Power of Attorney of
William W. Crowell
Page 3*

ACKNOWLEDGMENT

A notary public or other officer completing this certificate verifies only the identity of the individual who signed the document to which this certificate is attached, and not the truthfulness, accuracy, or validity of that document.

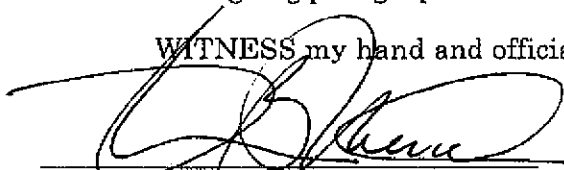
State of California)

County of Contra Costa)

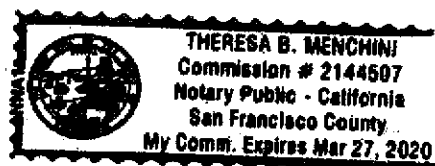
On 12/20/2018, before me, Theresa B. Menchini, a Notary Public, personally appeared John L. McDonnell, Jr., who proved to me on the basis of satisfactory evidence to be the person(s) whose name(s) is/are subscribed to the within instrument and acknowledged to me that he/she/they executed the same in his/her/their authorized capacity(ies), and that by his/her/their signature(s) on the instrument the person(s), or the entity upon behalf of which the person(s) acted, executed the instrument.

I certify under PENALTY of PERJURY under the laws of the State of California that the foregoing paragraph is true and correct.

WITNESS my hand and official seal.


Notary Public

(Seal)



WARNING TO PERSON EXECUTING THIS DOCUMENT

This is an important legal document. It creates a durable power of attorney. Before executing this document, you should know these important facts:

1. This document may provide the person you designate as your attorney in fact with broad powers to dispose, sell, convey and encumber your real and personal property.
2. These powers will exist for an indefinite period of time unless you limit their duration in this document. These powers will continue to exist notwithstanding your subsequent disability or incapacity.
3. You have the right to revoke or terminate this durable power of attorney at any time.

A handwritten signature in black ink, located in the bottom right corner of the page. The signature is cursive and appears to be the initials 'JW' followed by a flourish.

RECORDING REQUESTED BY AND
WHEN RECORDED MAIL TO:

William W. Crowell
689 University Drive
Menlo Park, CA 94025

DURABLE POWER OF ATTORNEY FOR FINANCIAL MANAGEMENT
GIVEN BY WILLIAM W. CROWELL

1. APPOINTMENT

1.1 Agent

I, WILLIAM W. CROWELL currently residing at 689 University Drive, Menlo Park, CA., appoint ELIZABETH EYRE TEMPLE, of 2910 Waverly Drive, Los Angeles, California 90039, telephone number 323-533-2575, e-mail address liza@inwoodland.com, as my true and lawful Agent and attorney-in-fact (referred to below as "my Agent"), to exercise the powers set forth below in my name and on my behalf as provided in this Power of Attorney.

1.2 Successor Agent

If ELIZABETH EYRE TEMPLE for any reason ceases to act as my Agent, I hereby appoint the person, persons or entity she shall designate as "successor Agent" in a writing which shall be attached to this document, to act as my Agent and to exercise the powers set forth below consistent with the provisions contained herein. Failing such designation, or if the designated successor Agent for any reason fails or ceases to act as my Agent, I appoint JANE ATKINSON LUBINSKY, of 3428 Loch Stone Court, Charlotte, North Carolina 28120, office telephone number 704-544-2880, cell phone number 704-281-1252 (cell), office e-mail addresses jane@inwoodproperties.net and personal e-mail address janeatkinsonlubinsky@icloud.com.

1.3 Evidence of Successor Agent's Authority

The following shall be conclusive evidence of authority vested in the successor Agent under this document:

- (a) Death of my Agent evidenced by a certified death certificate.
- (b) Disability or incapacity of my Agent evidenced by a written statement of my Agent's attending physician delivered to the successor Agent. The attending physician shall be held

harmless from and against any and all claims, liability or loss that may arise as a result of the delivery of such written statement to the successor Agent.

(c) Resignation of my Agent evidenced by a notarized writing delivered to the successor Agent.

The evidence of authority vested in the successor Agent shall be attached to the original of this instrument. Any person reasonably relying on such evidence to recognize the authority of the successor Agent under this document shall be held harmless from and against any and all claims, liability or loss that may arise as a result of such reliance. All references below to "my Agent" shall refer to my successor Agent when vested with authority as provided herein.

1.4 Effectiveness of Durable Power of Attorney

This Durable Power of Attorney shall become effective on my disability or incapacity or when I deliver a written statement to my Agent declaring that it has become effective, and it shall not be affected by my subsequent disability or incapacity. "Disability" shall include any mental or physical condition, including hospitalization, that renders me substantially unable to conduct my regular affairs. Such a condition of disability shall be evidenced by the written statement of my attending physician delivered to my Agent. I hereby release and hold harmless my physician from and against any and all claims, liability or loss that may arise as a result of the delivery of such a written statement to my Agent. The written statement by myself or my physician shall be attached to the original of this instrument. My Agent shall have no responsibility to monitor the state of my physical health or mental competence to determine if any actions need to be taken under this instrument.

1.5 Durability

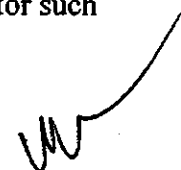
This Durable Power of Attorney shall not be affected by my subsequent disability or incapacity.

2. GENERAL POWERS TO MANAGE ASSETS

My Agent is authorized, in my Agent's sole and absolute discretion, at any time, with respect to all of my property and interests in property, real, personal, and mixed, as follows:

2.1 Demand and Receive

To demand, arbitrate, settle, sue for, collect, receive, deposit, expend for my benefit, reinvest or make such other appropriate disposition of as my Agent deems appropriate, all cash, rights to the payment of cash, property (real, personal, or mixed), rights and benefits to which I am now or may in the future become entitled, regardless of the identity of the individual or public or private entity involved (and for purposes of receiving social security benefits, my Agent is herewith appointed my "Representative Payee"); to utilize all lawful means and methods for such



purposes; to make such compromises, release, settlements and discharges with respect thereto as my Agent shall deem appropriate;

2.2 Bank Accounts

To establish, modify or terminate any accounts for me with any financial institutions; to make deposits or withdrawals, and to write checks on all accounts in my name or with respect to which I am an authorized signatory (except accounts held by me in a fiduciary capacity), whether or not any such account was established by me or for me by my Agent; to negotiate, endorse or transfer any checks or other instruments with respect to any such accounts; to contract for any services rendered by any bank or financial institution;

2.3 Safe-Deposit Boxes

To contract with any institution for the maintenance of a safe-deposit box in my name; to have access to all safe-deposit boxes in my name or with respect to which I am an authorized signatory; to add to and remove from the contents of any such safe-deposit box and to terminate any and all contracts for such boxes;

2.4 Insurance

To continue life insurance policies now or hereafter owned by me on either my life or the lives of others; to pay all insurance premiums; to select any options under such policies; to pursue all insurance claims on my behalf; to purchase and maintain and pay all premiums for medical insurance covering me and any person I am obligated or may have assumed the obligation to support; to carry insurance of such kind and in such amounts as my Agent shall deem appropriate to protect my assets against any hazard and to protect me from any liability; to pay the premiums therefor; to pursue claims thereunder;

2.5 Taxes

To represent me in all tax matters; to prepare, sign, and file federal, state, and local income, gift and other tax returns of all kinds, and any other tax-related documents, including but not limited to any power of attorney form required by the Internal Revenue Service or any state or local taxing authority with respect to any tax year between the years 1980 and 2050; and generally to represent me or obtain professional representation for me in all tax matters and proceedings of all kinds and for all periods between the years 1980 and 2050 before all officers of the Internal Revenue Service and state and local authorities;

2.6 Legal and Other Actions

To institute, supervise, prosecute, defend, intervene in, abandon, compromise, arbitrate, settle, dismiss, and appeal from any and all legal, equitable, judicial or administrative hearings, actions, suits, proceedings, attachments, arrests or distresses, involving me in any way;



2.7 Manage Real Property

With respect to real property (including but not limited to any real property described on any exhibit attached hereto), to lease or sublease; to eject tenants and recover possession of, by all lawful means; to collect, sue for, and receipt for rents; to pay, compromise, or contest tax assessments and to apply for refunds in connection therewith; to hire assistants; to maintain, protect, repair, insure, build upon, demolish, alter or improve all or any part thereof; to release or partially release real property from a lien; to insert as an exhibit to this instrument the descriptions of any real property in which I may now have or hereafter acquire an interest; to sell and to buy the same or other real property; to mortgage, convey by deed of trust, or otherwise encumber any real property now or hereafter owned by me;

2.8 Manage Personal Property

With respect to personal property, to lease, sublease, and release; to recover possession of by all lawful means; to maintain, protect, repair, insure, alter or improve all or any part thereof; to sell and to buy the same or other personal property; to mortgage and grant security interests in any personal property or intangibles now or hereafter owned by me;

2.9 Manage Partnership and Limited Liability Company Interests

To manage and control all partnership and limited liability company (LLC) interests owned by me and to make all decisions I could make as a general partner, limited partner, or member of an LLC; and to execute all documents required of the principal as such partner or member, all to the extent that the agent's designation for such purposes is allowed by law and is not in contravention of any partnership, LLC, or other agreement;

2.10 Manage Retirement Plans

To establish and contribute to IRA accounts and other employee benefits plans on my behalf, to select or change payment options and make elections under any IRA or employee benefit plan in which I am a participant, and to make rollovers of plan benefits into other retirement plans or IRA accounts; to apply for and make any elections and authorize distributions required for payment of any and all types of employee benefits, including any IRA, to which I may be entitled, to take possession of all such benefits, and to distribute such benefits to or for my benefit;

2.11 Fund Trusts Created by the Principal

To transfer at any time to the Trustee or Trustees of any revocable trust agreement created by me before or after the execution of this instrument, including the William Worrell Crowell Revocable Trust ("the Trust") established on November 7, 2011, which I intend to restate in its entirety, as to which trust I am, during my lifetime, the primary income and principal beneficiary, any or all of my cash, personal or real property (including but not limited to any real property described on any exhibit attached hereto) and interests in property, including any rights to receive income from any source; and for this purpose to insert as an exhibit to this instrument the

descriptions of any real property in which I may now have or hereafter acquire an interest; and to enter and remove from any safe-deposit box of mine (whether the box is registered in my name alone or jointly with one or more other persons) any of my cash or property and to execute such instruments, documents and papers to effect the transfers described herein as may be necessary, appropriate, incidental or convenient;

2.12 Withdraw Funds from Trusts

To receive or withdraw the income or corpus of the Trust and any other trust over which I may have a right of receipt or withdrawal; to request and receive the income or corpus of any trust with respect to which the Trustee thereof has the discretionary power to make distributions to or on my behalf, and to execute and deliver to such Trustee or Trustees a receipt and release or similar document for the income or corpus so received;

2.13 Exercise Powers Under Trusts

To exercise all powers granted to me under the terms of the Trust, including the power to amend the Trust, except that my Agent shall not have the power to revoke or to amend the Trust in such a manner as to modify the distribution of the Trust during my lifetime or upon my death nor to exercise any power granted to me under the Trust that would cause my interest in the Trust to be included in the estate of my Agent for federal gift and estate tax purposes;

2.14 Provide For Personal Care

To do all things and enter into all transactions necessary to provide for my personal care, to maintain my customary standard of living, to provide suitable living quarters for me, and to hire, compensate, and discharge household, nursing, and other employees as my Agent considers advisable for my well being, specifically including but not limited to: the authority to pay the ongoing costs of maintenance of my present residence, such as interest, taxes, and repairs; to procure and pay for clothing, transportation, recreation, travel, medicine, medical care, food, and other needs; and to make arrangements and enter into contracts on my behalf with hospitals, hospices, nursing homes, convalescent homes, and similar organizations, to the extent my Agent under any durable power of attorney for health care given by me lacks such authority; and

2.15 Provide Support to Others

To support and/or continue to support any person whom I have undertaken to support or to whom I may owe an obligation of support, in the same manner and in accordance with the same standard of living as I may have provided in the past (adjusted if necessary by circumstances and inflation), including but not limited to the payment of real property taxes, payments on loans secured by my residence, maintenance of my residence, food, clothing and shelter, medical, dental and psychiatric care, normal vacations and travel expenses and education (including education at vocational and trade schools, training in music, stage, arts and sports, special training provided at institutions for the mentally or physically handicapped, undergraduate and graduate study in any field at public or private universities, colleges or other institutions of



higher learning) and in providing for such education to pay for tuition, books and incidental charges made by the educational institutions, travel costs to and from such institutions, room and board, and a reasonable amount of spending money.

3. ESTATE-PLANNING POWERS

My Agent is authorized in my Agent's sole and absolute discretion, except as specifically limited herein, to exercise the following powers with respect to any of my property or interests in property, and to employ legal and other professional counsel to advise my Agent regarding the exercise of such powers:

3.1 Disclaim, Renounce, Release, or Abandon Property Interests

To disclaim, release or abandon any property or interest in property or powers which I may now or hereafter own or to which I may become entitled, whether by gift, testate or intestate succession, and to execute and deliver disclaimers under Section 2518 of the Internal Revenue Code of 1986, as amended, and Section 260 et seq. of the California Probate Code, as amended;

3.2 Division and Transmutation of Property

To enter into agreements with my spouse regarding the division and transmutation of our community property, and to make such transfers and execute such documents as may be required to give effect to such agreement;

3.3 Make Gifts

To make gifts of my personal and real property, in trust or free of trust, to any one or more of the following persons or entities:

(a) My descendants, provided, however, that the value of such gifts to any one donee in a calendar year shall not exceed the annual exclusion amount for federal gift tax purposes.

(b) Charitable organizations described in Internal Revenue Code Section 2055(a) qualifying for the charitable deduction for income tax purposes, according to my usual pattern of giving.

3.4 Authority to Pay Third Party Tuition and Medical Expenses

To make direct payments to a provider of tuition or of medical care for the benefit of any one or more of my descendants (excluding my Agent) under Internal Revenue Code Section 2503(e) or any successor statute, which excludes such payments from gift tax liability.



4. INCIDENTAL POWERS

In connection with the exercise of the powers herein described, my Agent is fully authorized to perform any acts and things and to execute and deliver any documents, instruments, and papers necessary, appropriate, incident or convenient to such exercise, as fully as I might or could do if personally present, including without limitation the following:

4.1 Sign Documents, Etc.

To execute, endorse, seal, acknowledge, deliver and file or record agreements, instruments or conveyances of real and personal property, instruments granting and perfecting security instruments and obligations, orders for the payment of money, receipts, releases, waivers, elections, vouchers, consents, satisfactions and certificates;

4.2 Hire and Fire

To employ, compensate and discharge such domestic, medical and professional personnel including lawyers, accountants, doctors, nurses, brokers, financial consultants, advisors, consultants, companions, servants and employees as my Agent deems appropriate;

4.3 Supplement this Instrument

To supplement this instrument by adding or modifying the descriptions of any property, real or personal, which I may now or hereafter own, in whole or in part; and

4.4 Miscellaneous Acts

To open, read, respond to and redirect my mail; to represent me before the U.S. Postal Service in all matters relating to mail service; to establish, cancel, continue or initiate my membership in organizations and associations of all kinds, to take and give or deny custody of all of my important documents, including but not limited to my will, codicils, trust agreements, deeds, leases, life insurance policies, contracts and securities and to disclose or refuse to disclose such documents; to obtain and release or deny information or records of all kinds relating to me, any interest of mine or to any person for whom I am responsible.

5. THIRD PARTY RELIANCE

5.1 Reliance on Agent's Authority and Representations

For the purpose of inducing any individual, organization, corporation or entity (including but not limited to any physician, hospital, bank, broker, custodian, insurer, lender, transfer agent, taxing authority, governmental agency, or party, all of whom are referred to in this Section as "person") to act in accordance with the instructions of my Agent as authorized in this instrument, I hereby represent and agree that no person who relies in good faith upon the authority of my Agent under this instrument shall incur any liability to me, my estate, my heirs, successors or



assigns. In addition, no person who relies in good faith upon any representation my Agent may make as to (a) the fact that my Agent's powers are then in effect, (b) the scope of my Agent's authority granted under this instrument, (c) my competency at the time this instrument is executed, (d) the fact that this instrument has not been revoked, or (e) the fact that my Agent continues to serve as my Agent, shall incur any liability to me, my estate, my heirs or assigns for permitting my Agent to exercise any such authority, nor shall any person who deals with my Agent be responsible to determine or insure the proper application of funds or property. I ratify and confirm all that my Agent shall lawfully do or cause to be done by virtue of this power and authority.

5.2 Effect of Agent's Acts

The powers conferred on my Agent by this instrument may be exercised by my Agent alone and my Agent's signature or act under the authority granted in this document may be accepted by persons as fully authorized by me and with the same force and effect as if I were personally present, competent and acting on my own behalf. Consequently, all acts lawfully done by my Agent hereunder are done with my consent and shall have the same validity and effect as if I were personally present and personally exercised the powers myself, and shall inure to the benefit of and bind me, my estate, my heirs, successors, assigns and personal representatives.

5.3 Resort to Courts

I authorize my Agent to seek on my behalf and at my expense:

(a) A declaratory judgment from any court of competent jurisdiction interpreting the validity of this instrument or any of the acts authorized by this instrument, but such declaratory judgment shall not be necessary in order for my Agent to perform any act authorized by this instrument;

(b) A mandatory injunction requiring compliance with my Agent's instructions by any person obligated to comply with instructions given by me or by my Agent; or

(c) Actual and punitive damages against any person obligated to comply with instructions given by my Agent who negligently or willfully fails or refuses to follow the instructions of my Agent given under this instrument.

6. RESTRICTIONS ON POWERS

My Agent is prohibited, except as specifically authorized in this instrument, from appointing, assigning or designating any of my assets, interests or rights directly or indirectly to my Agent, my Agent's estate, my Agent's creditors, or the creditors of my Agent's estate. Under no circumstances, even if otherwise authorized by this instrument, shall my Agent exercise any power granted under this instrument to satisfy any legal obligation of my Agent or to appoint to or for the benefit of my Agent in any one calendar year assets of my estate having a value in excess of five percent (5%) of my estate.



7. REIMBURSEMENT AND COMPENSATION OF AGENT

My Agent shall be entitled to reimbursement for all reasonable costs and expenses actually incurred and paid by my Agent on my behalf under any provision of this instrument. In addition, my Agent shall be entitled to reasonable compensation for services rendered hereunder, not to exceed the normal fees charged for similar services by a bank trust department.

8. NOMINATION OF CONSERVATOR

I hereby nominate my Agent then acting pursuant to this instrument as Conservator of my estate to serve without bond if protective proceedings for my estate are commenced at any time.

9. REVOCATION AND AMENDMENT

I revoke all prior General Durable Powers of Attorney (but not any Durable Power of Attorney for Health Care) that I may have executed and I retain the right to revoke or amend this instrument and to substitute other Agents for the Agent and alternate Agents named in this instrument. Except as specifically provided otherwise in this instrument, amendments to this instrument shall be made in writing personally by me and not by my Agent and shall be attached to the original of this instrument.

10. MISCELLANEOUS PROVISIONS

10.1 Severability

If any part of any provision of this instrument shall be invalid or unenforceable under applicable law, such part shall be ineffective to the extent of such invalidity only, without in any way affecting the remaining parts of such provision or the remaining provisions of this instrument.

10.2 Governing Law and Applicability to Foreign Jurisdictions

This instrument shall be governed by the laws of the State of California in all respects, including its validity, construction, interpretation and termination, and to the extent permitted by law shall be applicable to all property of mine, real, personal, or mixed, in whatever state of the United States or foreign country the situs of such property is at any time located and whether such property is now owned by me or hereafter acquired by me or for me by my Agent.



10.3 Photocopies

My Agent is authorized to make photocopies of this instrument as frequently and in such quantity as my Agent shall deem appropriate. All photocopies shall have the same force and effect as any original.

11. WARNING — CALIFORNIA PROBATE CODE:

The California Probate Code provides:

“A durable power of attorney is an important legal document. By signing the durable power of attorney, you are authorizing another person to act for you, the principal. Before you sign this durable power of attorney, you should know these important facts:

Your agent (attorney-in-fact) has no duty to act unless you and your agent agree otherwise in writing.

This document gives your agent the power to manage, dispose of, sell, and convey your real and personal property, and to use your property as security if your agent borrows money on your behalf.

Your agent will have the right to receive reasonable payment for services provided under this durable power of attorney unless you provide otherwise in this power of attorney.

The powers you give your agent will continue to exist for your entire lifetime, unless you state that the durable power of attorney will last for a shorter period of time or unless you otherwise terminate the durable power of attorney. The powers you give your agent in this durable power of attorney will continue to exist even if you can no longer make your own decisions respecting the management of your property.

You can amend or change this durable power of attorney only by executing a new durable power of attorney or by executing an amendment through the same formalities as an original. You have the right to revoke or terminate this durable power of attorney at any time, so long as you are competent.

This durable power of attorney must be dated and must be acknowledged before a notary public or signed by two witnesses. If it is signed by two witnesses, they must witness either (1) the signing of the power of attorney or (2) the principal's signing or acknowledgment of his or her signature. A durable power of attorney that may affect real property should be acknowledged before a notary public so that it may easily be recorded.

You should read this durable power of attorney carefully. When effective, this durable power of attorney will give your agent the right to deal with property that you now have or might acquire in the future. The durable power of attorney is important to you. If you do not



understand the durable power of attorney, or any provisions of it, then you should obtain the assistance of an attorney or other qualified person."

12. SIGNATURE AND EXECUTION

I execute this Durable Power of Attorney for Financial Management on February 11, 2016, in Menlo Park, California.


WILLIAM W. CROWELL

A notary public or other officer completing this certificate verifies only the identity of the individual who signed the document to which this certificate is attached, and not the truthfulness, accuracy, or validity of that document.

State of California

County of San Mateo

On February 11, 2016 before me, Reshna Kumari Sumiran, Notary Public
(here insert name and title of the officer)
personally appeared William W. Crowell
Name of Signer(s)

who proved to me on the basis of satisfactory evidence to be the person(s) whose name(s) is/are subscribed to the within instrument and acknowledged to me that he/she/they executed the same in his/her/their authorized capacity(ies), and that by his/her/their signature(s) on the instrument the person(s), or the entity upon behalf of which the person(s) acted, executed the instrument.

I certify under PENALTY OF PERJURY under the laws of the State of California that the foregoing paragraph is true and correct.

WITNESS my hand and official seal.

Signature Reshna Kumari Sumiran

(Seal)

